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ASSURED INCOME FOR THE SEVERELY HANDICAPPED ACT

Chapter A-45.1

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Schedules

HER MAJESTY, by and with the advice and consent of the
Legislative Assembly of Alberta, enacts as follows:

Definitions

1 In this Act,

(a) repealed 2024 c15 s3;

(a.01) “Alberta escalator” means the Alberta escalator as defined
in section 44.2 of the *Alberta Personal Income Tax Act*;

(a.1) “benefit” means a benefit referred to in section 3(1);

(b) “client” means a recipient of a benefit who is eligible
under the regulations;

(c) “cohabiting partner” means a cohabiting partner as
defined in the regulations;

(c.1), (c.2) repealed 2024 c15 s3;

(d) “Department” means the Department administered by the
Minister;

(e) “dependent child” means a dependent child as defined in
the regulations;

- (f) “director” means a person designated by the Minister as a director for the purposes of this Act;
- (g) “facility” means a facility as defined in the regulations;
- (h) “Minister” means the Minister determined under section 16 of the *Government Organization Act* as the Minister responsible for this Act.
- (i) repealed 2019 c18 s4.

2006 cA-45.1 s1;2018 c17 s2;2019 c18 s4;2024 c15 s3

Delegation by director

2 A director may delegate any power, duty or function conferred or imposed on a director under this Act to any employee of the Department or of an Indian or Metis organization.

Benefits

3(1) A director may, subject to this Act and in accordance with the regulations, provide the following benefits:

- (a) a living allowance, a child benefit or a personal benefit to a person who is eligible under the regulations;
- (b) a health benefit to a person who is eligible under the regulations and any cohabiting partner or dependent children of that person.

(2) A director may provide a modified amount of a living allowance in accordance with this Act and the regulations to a person who resides in a facility.

2006 cA-45.1 s3;2018 c17 s2;2019 c18 s4

Benefit amounts and adjustment

3.1(1) This section applies to the following benefits or benefit components:

- (a) a living allowance;
- (b) the part of a modified living allowance that is not based on the accommodation charge under the *Continuing Care Act*;
- (c) a child benefit;
- (d) subject to Schedule 1, a personal benefit.

(2) The amount of a benefit or a benefit component referred to in subsection (1)(a), (b) or (c) is as follows:

- (a) effective January 1, 2025, the amount set out in Schedule 1 or determined in accordance with Schedule 1;
- (b) effective January 1, 2026, an amount adjusted annually in accordance with Schedule 1.

(2.1) The amount of a benefit or a benefit component referred to in subsection (1)(d) is as follows:

- (a) effective January 1, 2025, the amount set out in Schedule 1 or determined in accordance with Schedule 1;
- (b) effective January 1, 2026, an amount adjusted annually in accordance with Schedule 1.

(2.2) to (4) Repealed 2024 c15 s3.

(5) Despite subsection (2), the amount of a benefit or a benefit component may be increased at any time in accordance with the regulations.

2018 c17 s2;2019 c18 s4;2022 cC-26.7 s65.1;2024 c15 s3

Eligibility for benefits

3.2 Subject to the regulations, a person is eligible to receive a benefit if the person is eligible under the regulations.

2018 c17 s2;2019 c18 s4

3.3 Repealed 2019 c18 s4.

Application for benefit

4 An application for a benefit must be made to a director in accordance with the regulations.

Review of benefit eligibility

5(1) An applicant or client and his or her cohabiting partner must provide any information a director considers necessary as required by the director to determine if the applicant or client is eligible or continues to be eligible to receive a benefit.

(2) Without limiting the generality of subsection (1), an applicant or client must provide any information about his or her physical, mental or psychological condition and undergo any physical,

mental or psychological examinations a director considers necessary to determine if the applicant or client is severely handicapped.

(3) An applicant or client must, subject to the regulations, notify a director of the following:

- (a) a change in his or her handicap;
- (b) a change in income;
- (c) an increase in assets;
- (d) any other matter specified in the regulations.

(4) A director may, in accordance with the regulations, refuse, suspend, vary or discontinue a benefit.

Third parties and financial administrators

6(1) A director may pay a third party for goods or services provided to a client from the client's benefit if the client consents.

(2) A director may appoint a financial administrator to manage all or part of a client's benefit if the client is unable to manage his or her own affairs and the client consents or the director is authorized by regulation.

(3) A financial administrator must administer a client's benefit in accordance with the regulations.

Requirement to repay

7(1) Subject to subsection (4) and the regulations, a client must repay the amount or value of a benefit received if, in a director's opinion,

- (a) a benefit has been used for a purpose other than that for which it was provided, or
- (b) the client received a benefit to which the client was not entitled.

(2) A financial administrator or third party may be required by a director to repay the amount or value of a benefit received on behalf of a client if, in the director's opinion,

- (a) the client received a benefit to which the client was not entitled due to the non-disclosure of a material fact or

provision of false information by the financial administrator or third party, or

- (b) a benefit administered by the financial administrator or third party has been used for a purpose other than that for which it was provided.

(3) A director must provide written notice of the following to a person who is required to repay an amount or value under this section:

- (a) the amount or value to be repaid;
- (b) any amount or value the director is exempting the person from repaying under subsection (4);
- (c) the right to appeal under section 10.

(4) If a director determines there are appropriate circumstances, the director may exempt a person from the requirement to repay an amount or value unless

- (a) the amount or value is a debt due under section 9(1), or
- (b) in the director's opinion, the person received the benefit by wilful misrepresentation or fraud.

2006 cA-45.1 s7;2018 c17 s2

Underpayments

8 Where a director determines that there has been an underpayment of a benefit, the director may address the underpayment in accordance with the regulations.

Debt due

9(1) An amount repayable under section 7 is a debt due to the Government when

- (a) the client has agreed in writing to repay the value or amount of a benefit,
- (b) the appeal period under section 10 has expired, or
- (c) 30 days has elapsed after a client abandoned an appeal under section 10 or was notified in writing of the determination of the appeal.

(2) A director may take any of the following actions the director considers necessary to collect any debt due to the Government:

- (a) entering into a repayment agreement with the debtor;
- (b) deducting the amount owing from a future benefit payable to the client in an amount determined in accordance with the regulations until the amount owing has been paid;
- (c) filing with the clerk of the Court of King's Bench at any judicial centre a certificate of the Minister certifying the amount owing;
- (d) bringing an action in debt.

(3) A certificate filed under subsection (2)(c) becomes an order of the Court of King's Bench and may be enforced as a judgment of that court.

2006 cA-45.1 s9;2009 c53 s26;AR 217/2022

Appeals

10(1) The Minister may establish one or more appeal panels to hear appeals under this Act.

(1.1) In establishing an appeal panel, the Minister may

- (a) appoint or provide for the manner of the appointment of its members,
- (b) prescribe the term of office of any member,
- (c) designate a chair and one or more vice-chairs, and
- (d) authorize, fix or provide for the payment of remuneration and expenses to its members.

(1.2) The quorum to hear an appeal is 3 members, but an appeal may be heard by one member for procedural matters related to the appeal or in emergency circumstances provided for in the regulations.

(1.3) A member of an appeal panel may be reappointed.

(1.4) Notwithstanding subsection (1.1), where an appeal panel member's appointment expires, the member continues to hold office until

- (a) the member is reappointed,

- (b) a successor is appointed, or
- (c) a period of 3 months has elapsed,

whichever occurs first.

(2) A person affected by a decision of a director, or a person on his or her behalf, may appeal that decision if it is not exempt from appeal under the regulations and the appeal is made in writing to an appeal panel within 30 days from when the person was notified of the decision and the right to appeal it.

(3) An appeal panel may, subject to this Act and the regulations, confirm, reverse or vary the decision of a director appealed from, and the decision of the appeal panel is final.

(4) The Minister may extend the time for appeal under subsection (2) if the Minister is satisfied that there are apparent grounds of appeal and a reasonable explanation for the delay.

2006 cA-45.1 s10;2016 c19 s4

Offences

11(1) A person who is required to provide information under this Act and knowingly gives false information, conceals information or omits to provide information is guilty of an offence and liable to a fine of not more than \$1000 and, where ordered by a judge, repayment of the amount or value of the benefit received.

(2) A financial administrator or third party is guilty of an offence and liable to a fine of not more than \$5000 if he or she

- (a) benefits from a benefit knowing that the client was not entitled to receive it, or
- (b) wilfully misuses a benefit provided for a client.

Regulations

12(1) The Lieutenant Governor in Council may make regulations

- (a) respecting living allowances, child benefits, health benefits and personal benefits payable, including the retroactive provision of those benefits;
- (a.1) respecting increases to the amounts of benefits or benefit components, except personal benefits, including regulations

- (i) respecting the amounts of increases or the manner in which the amounts of increases are to be determined;
 - (ii) respecting the timing of increases;
- (a.11) respecting eligibility conditions;
- (a.2) repealed 2019 c18 s4;
- (a.3), (a.4) repealed 2024 c15 s3;
- (b) respecting the circumstances in which a director may provide, refuse, suspend, vary or discontinue a benefit;
- (b.1) respecting the determination of the income of an applicant or client and his or her cohabiting partner;
- (c) repealed 2018 c17 s2;
- (d) respecting the determination of the assets of an applicant or client and his or her cohabiting partner and the value of those assets;
- (d.1) repealed 2019 c18 s4;
- (e) respecting the notification requirements for changes in a handicap, income, assets and other matters specified in the regulations;
- (f) respecting the appointment and duties of a financial administrator;
- (g) respecting requirements to repay under section 7, including the circumstances in which a director does not have to or must not require repayment;
- (h) respecting underpayments;
- (i) respecting the collection of debts due under section 9(2) (b);
- (j) respecting the collection, use or disclosure of information for the purposes of administering this Act;
- (k) defining for the purposes of this Act “cohabiting partner”, “dependent child”, “facility” and any other word or phrase used in this Act but not defined in this Act;

- (l) respecting any other matter that the Lieutenant Governor in Council considers necessary to carry out the intent of this Act.

(2) The Minister may make regulations

- (a) respecting applications for benefits;
- (b) respecting appeals, the decisions of a director that are exempt from appeal and the emergency circumstances in which an appeal may be heard by one member of an appeal panel;
- (c) respecting the transition of any matter from the previous legislation.

2006 cA-45.1 s12;2016 c19 s4;2018 c12 s1;2018 c17 s2;
2019 c18 s4;2024 c15 s3

Transitional

13(1) Part 6 of the *Income and Employment Supports Act* applies, in respect of matters referred to in clause (a), (b) or (c), to a person who, before the coming into force of this Act,

- (a) was subject to deductions from assistance under section 38 of the *Income and Employment Supports Act*,
- (b) was issued a repayment notice under Part 6 of the *Income and Employment Supports Act*, or
- (c) entered into an agreement to repay under the *Social Development Act*, the *Income Support Recovery Act*, the *Assured Income for the Severely Handicapped Act*, RSA 2000 cA-45, or the *Income and Employment Supports Act*,

and, in addition, the Director under the *Income and Employment Supports Act* may, in respect of the matters referred to in clause (a), (b) or (c), deduct an amount owing from a benefit for which the person is eligible under this Act.

(2) Where a director has paid all or part of a client's benefit to a financial administrator or a third party prior to the coming into force of this provision, the director may continue to do so notwithstanding section 6.

2006 cA-45.1 s13;2007 c20 s18

14 (*This section amends other Acts; the amendments have been incorporated into those Acts.*)

Repeal

15 The *Assured Income for the Severely Handicapped Act*, RSA 2000 cA-45, is repealed.

Coming into force

16 This Act comes into force on Proclamation.

(NOTE: Proclaimed in force May 1, 2007.)

Schedule 1

Calculation of adjusted amounts

1 A benefit or a benefit component that is to be adjusted under section 3.1(2)(b) or 3.1(2.1)(b) of this Act must be adjusted annually by an amount equal to

(a) the amount of the benefit or the benefit component for the previous calendar year, including any increase to that amount made under the regulations,

multiplied by

(b) the Alberta escalator.

2 Repealed 2024 c15 s3.

Modified living allowance

3(1) A modified monthly living allowance may be paid to an applicant or a client who resides in a facility.

(2) Subject to section 6, the amount of the monthly modified living allowance under section 3.1(2)(a) of this Act is the sum of

(a) \$365, and

(b) the amount of the applicable accommodation charge.

(3) For the purposes of subsection (2)(b), the amount of the applicable accommodation charge is

(a) the maximum amount of the accommodation charge set under the *Continuing Care Act* in respect of a private room, or

(b) if the facility is funded under the Lodge Assistance program, the maximum amount of the accommodation charge set under the *Continuing Care Act* in respect of a shared room.

Living allowance

4(1) A monthly living allowance may be paid to an applicant or a client who does not reside in a facility.

(2) Subject to section 6, the amount of the monthly living allowance under section 3.1(2)(a) of this Act is \$1901.

Child benefit

5(1) A monthly child benefit may be paid to one applicant or client per household per dependent child.

(2) Subject to section 6, the amount of the monthly child benefit under section 3.1(2)(a) of this Act is \$227 for the first child and \$114 for each additional child.

Deductions

6 The following must be deducted from a benefit paid under section 3, 4 or 5:

- (a) if the client resides in a group home owned and operated by the Government of Alberta that is designated by the Minister, the amount payable by the person for residence in that group home;
- (b) the client's income as determined in accordance with the regulations;
- (c) if the client's cohabiting partner is not a client, the cohabiting partner's income as determined in accordance with the regulations.

Personal benefit

7(1) The Minister may determine the amount of a personal benefit and the frequency with which a personal benefit may be provided.

(2) The amount of a personal benefit under section 3.1(2.1)(a) of this Act is determined by the Minister.

(3) Section 3.1(2.1)(b) of this Act does not apply to a personal benefit amount that is

- (a) a reimbursement of an actual cost,
- (b) an amount established in an agreement entered into by the Minister, or
- (c) based on an amount that is determined under another enactment or under a Government program.

2018 c17 s2;2019 c18 s4;2022 cC-26.7 s65.1;2024 c15 s3

Schedule 2 Repealed 2019 c18 s4.

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